
IN THE FIFTH DISTRICT COURT - ST GEORGE DEPARTMENT
IN AND FOR WASHINGTON COUNTY, STATE OF UTAH

AFFIDAVIT FOR SEARCH WARRANT

STATE OF UTAH)
 :SS
County of Washington)

The undersigned affiant, Investigator JUSTIN BOWEN of State Bureau of Investigation, upon an oath or written affidavit subscribed under criminal penalty, declares:

That your affiant has reason to believe:

THAT

On the item(s) described as:

An iPhone 14 with serial number: H6YTR96QH4. The phone is in a clear case made by OtterBox with a cracked screen.

In the City of St. George, County of Washington, State of Utah, there is now certain property or evidence described as:

Your affiant is requesting to search and seize the cellphone as identified in this affidavit for electronically stored information, including information related to incoming and outgoing calls, missed calls, and the dates and times recorded for such calls; contact directory information; subject account information as well as account information for third party applications; voice messages; text messages; multimedia messages; digital photographs; video files; any video or audio recordings, downloads, or copies; all GPS mapping and coordinates, including historically archived information; GPS information to include location data from third party applications, including all EXIF and metadata attached to these files; social media posts, search history, social media activity; and any and all other information or data that is deemed to be pertinent to the investigation of a homicide.

and that said property or evidence:

Was unlawfully acquired or is unlawfully possessed;

has been used or is possessed for the purpose of being used to commit or conceal the commission of an offense; or

is evidence of illegal conduct.

Affiant believes the property and evidence described above is evidence of the crime or crimes of 76-5-202 Aggravated murder.

The facts to establish the grounds for issuance of a Search Warrant are:

Your affiant, Agent Justin Bowen, is employed by the Utah Department of Public Safety State Bureau of Investigation and is currently assigned to the Major Crimes unit. Your affiant has been given the responsibility to investigate homicides, violent crimes, weapons offenses, fraud, domestic violence crimes, sex offenses, offenses related to vehicle crashes and narcotics offenses among others. Your affiant has been through Peace Officer Standards and Training, and graduated August 2018. Your affiant has received several specialized trainings in different areas, including sex crimes investigations, fraud detection and prevention, domestic violence incidents, and homicides. Your affiant is currently certified as a Certified Fraud Examiner. Your affiant has investigated or assisted in investigations involving homicides, firearms offenses, death investigations, assault offenses, property crimes, crash investigations, and impaired driver investigations.

The statements in this affidavit do not contain all known information but rather only those facts believed to be necessary to establish probable cause for this complaint. I am familiar with the facts and circumstances set forth herein as a result of a review of records, digital surveillance camera footage, and conversations with other law enforcement officers, and my own investigative efforts, as more fully described below.

On September 10, 2025, Charles James Kirk was at the Utah Valley University (UVU) campus in Orem, Utah, for a political event. Mr. Kirk is a conservative political activist who was scheduled to speak at an event in the courtyard area on the UVU campus. The courtyard area is to the west of the Losee Center building. According to video recordings, Charles was wearing a white T-shirt and dark pants, sitting under a white canopy in a courtyard of the campus facing to the east. Charles was holding a microphone and speaking to a crowd. While speaking into the microphone, a loud gunshot was heard at approximately 1223 hours, and Charles appeared to have been hit in the neck. Blood was seen coming out of the left side of his neck as he fell over to his left. Charles was transported to the Timpanogos Regional Hospital in Orem. Charles was pronounced deceased at the hospital. Charles' body was transported to the Office of the Medical Examiner, where an autopsy was performed on the body. According to information obtained from the police officer who attended the autopsy, Sergeant Barrett with the Utah State Bureau of Investigation, Dr. Guarjado with the Office of the Medical Examiner concluded the autopsy and explained that he was going to certify that Charles Kirk's cause of death was a homicide caused by a gunshot wound.

Investigators reviewed the Utah Valley University surveillance cameras. While reviewing the surveillance cameras, investigators observed an individual on the rooftop of the Losee Center building on the UVU campus at the time of the shooting. Hereafter, the unidentified individual will be referred to as "Robinson". Based on surveillance camera footage, Robinson appears to be a white male with dark colored hair, wearing a blue colored hat, sunglasses, a long sleeve black shirt with a picture of an American flag and an eagle

printed on the shirt, dark colored jeans, and white/gray shoes with white colored shoelaces (the shoes appear to be consistent with Chuck Taylor/Converse style shoes). Robinson is also carrying a dark colored backpack on his back. Robinson walks with a distinctive gait. Prior to the shooting, Robinson appears to walk with a stiff right leg and at a relatively slow pace. Robinson's ability to bend his right leg appears to be restricted. The Investigators were able to track Robinson's movements on the UVU campus, starting at approximately 1150 hours on 9/10/2025.

At approximately 1150 hours, a UVU surveillance camera first captured Robinson walking across a grassy area north of Campus Drive at approximately 800 West. Robinson walks south through the parking lot and approaches a pedestrian tunnel that runs underneath Campus Drive. Robinson pauses briefly before entering the tunnel. Before entering tunnel, Robinson pauses at the top of the stairs and pulls out what appears to be a cellphone from his right pocket using his right hand at approximately 1153 hours. Robinson appears to be manipulating the cellphone device with his hands, possibly texting. Robinson eventually puts what appears to be a cellphone back in his right pants pocket using his right hand. Robinson walks down the stairs and noticeably keeps his right leg mostly straight while walking down the stairs into the tunnel. Robinson walks through the tunnel and into the parking garage area. Robinson walks up the stairs to the second level of the parking garage. While walking up the stairs in the parking garage, Robinson continues to keep his right leg straight. As Robinson approaches the landing on the stairs between the first and second floor, it appears as though there is something bulging out from Robinson's waistband area as he walks up the stairs. The bulge appears to be underneath Robinson's black shirt and on the right side of Robinson's waistband area.

At approximately 1202 hours, Robinson is observed walking on the north side of the Losee Center building, walking with the same gait as observed earlier. Robinson walks south on the sidewalk on the east side of the Losee Center building. Robinson enters the Losee Center building through a set of doors on the southeast corner of the Losee Center building. At approximately 1215 hours, Robinson is observed walking up the stairs that lead to the common area adjacent to the Losee Center building. Robinson walks to a short concrete wall that separates the common area from the rooftop of the Losee Center building. At approximately 1217 hours, Robinson climbs over the short wall and appears to crouch down on the north side of the wall on the rooftop. At approximately 1222 hours, Robinson stands up and starts running across the rooftop of the Losee Center building. Robinson runs to the west side of the rooftop and appears to scoot along the rooftop area as he gets closer to the edge of the rooftop. At approximately 1222 hours, Robinson lays down in a prone position near the edge of the rooftop and appears to be facing west, in the direction of the courtyard area.

The rooftop of the Losee Center building overlooks the courtyard area where the event featuring Charlie Kirk was taking place. The Losee Center building is east of the courtyard area. At approximately 1223 hours, Robinson stands up suddenly from the edge of the rooftop and sprints north on the rooftop of the Losee Center building. This sprinting motion is in stark contrast to the slow and restricted gait observed by Robinson in earlier surveillance camera footage. Robinson runs to the northeast corner of the Losee Center building and approaches the edge of the rooftop. Robinson places a dark colored item on the rooftop and proceeds to lower himself off the rooftop. Robinson drops off the rooftop onto the grass below. Robinson runs north near the parking lot to the east of the Losee Center. At approximately 1224 hours, Robinson runs north across the Campus Drive road.

The area to the north of Campus Drive road where Robinson crossed over is a grassy area

with trees on the edge of the UVU campus. Investigators discovered a bolt action rifle wrapped in a dark colored towel. The rifle was determined to be a Mauser Model 98, .30-06 caliber bolt action rifle. The rifle had a scope mounted on top of it. Investigators noted inscriptions that had been engraved on casings found with the rifle. Inscriptions on a fired casing read "Notices Buldge OWO what's this?". Inscriptions on the three unfired casings read: "hey fascist! CATCH! (up arrow symbol, right arrow symbol, and three down arrow symbols)". A second unfired casing read "O Bella ciao, Bella ciao, Bella ciao, Ciao, ciao!". A third unfired casing read "If you read This, you are GAY Lmao".

Investigators documented a shoe impression on the northeast corner rooftop edge of the Losee Center building. This shoe impression was located in the vicinity where Robinson climbed down from the rooftop. The shoe impression is consistent with the shoe sole characteristics of a Converse/Chuck Taylor shoe.

While processing the crime scene, evidence technicians were able to identify the locations where Robinson, through physical contact, had left potential biological evidence. Touch DNA transfers when skin cells, from touch or sweat, are shed onto an object during direct or indirect contact, and it can also transfer from one person to another. This type of DNA evidence comes from epithelial cells, or skin cells, that contain cellular DNA and can be recovered from a wide range of surfaces with the use of forensic DNA techniques. This evidence was collected in order to obtain a potential DNA profile for Robinson. Evidence technicians also identified fingerprints and a smeared palm print in the vicinity of the northeast corner rooftop edge of the Losee Center building where Robinson dropped off the rooftop to the ground below.

On 9/11/2025, Sheriff Smith with the Utah County Sheriff's Office received a phone call at approximately 2004 hours from Sheriff Brooksby with the Washington County Sheriff's Office. According to Sheriff Brooksby, he had received a phone call from a former deputy who had previously been employed with the Sheriff's Office. The former deputy, identified as Mike Mitchell, explained that he had received a phone call from the father of Tyler Robinson. Mike Mitchell explained that Tyler Robinson confessed to his father that he was the shooter at Utah Valley University. Tyler Robinson's parents worked with law enforcement to arrange a way for Tyler Robinson to turn himself in without a confrontation with law enforcement. Mike Mitchell coordinated with law enforcement to have Tyler Robinson meet with law enforcement at the Washington County Sheriff's Office. Tyler Robinson arrived at the Washington County Sheriff's Office accompanied by his parents at approximately 2226 hours. Tyler Robinson was not wearing clothing consistent with the clothing observed on surveillance cameras during and around the time of the incident at UVU. According to a photo provided to me by Agent Davis with the Utah State Bureau of Investigation, Tyler Robinson arrived at the Washington County Sheriff's Office wearing a dark colored hat, a maroon-colored T-shirt, jeans, and white/gray colored Converse style shoes. Tyler Robinson's mother relayed to law enforcement that Tyler Robinson had expressed having suicidal ideations. Sergeant Elsholz with the Utah State Bureau of Investigation provided me with a photograph of Tyler Robinson's Utah driver license. The driver license was taken from the person of Tyler Robinson by Agent Davis with the Utah State Bureau of Investigation.

On 9/12/2025, at approximately 0100 hours, FBI Special Agent Lange conducted an interview with the boyfriend of Tyler Robinson at the Washington County Sheriff's Office. The boyfriend was identified as Lance Twiggs. During the interview, Lance showed investigators text messages between Tyler Robinson and himself. The following is the content of those messages between Tyler Robinson and Lance Twiggs. First message

(Tyler): "I am still ok my love, but am stuck in orem for a little while longer yet". Second message (Tyler): "shouldn't be long until I can come home, but I gotta grab my rifle still. To be honest I had hoped to keep this secret till I died of old age. I am sorry to involve you". Third message (Lance): "you weren't the one who did it right?????" Fourth message (Tyler): "I am, I'm sorry". Fifth message (Lance): "I thought they caught the person?" Sixth message (Tyler): "no, they grabbed some crazy old dude, then interrogated someone in similar clothing". Seventh message (Tyler): "I had planned to grab my rifle from my drop point shortly after, but most of that side of town got locked down. Its quiet, almost enough to get out, but theres one vehicle lingering".

Lance showed FBI Special Agent Lange additional text messages between Tyler Robinson and himself. The following is the content of those messages between Tyler Robinson and Lance Twiggs. First message (Tyler): "three hours ago there was an officer with a k9 walking nearby the area, hoping that pooch has a bad sniffer". Second message (Tyler): im wishing I had circled back and grabbed it as soon as I got to my vehicle, because it sounds like the police couldn't get in for a long while because of the traffic". Third message (Tyler): needless to say imma be late coming home, my b". Fourth message (Lance): "just stay safe". Fifth message (Tyler): "I will". Sixth message (Tyler): "im more worried what my old man would do if I didn't bring back grandpas rifle". Seventh message (Tyler): "he's far scarier than any fed ngl". Eighth message (Tyler): "guess im just sittin in my car watching reels for another hour, hopin this guy fucks off". Ninth message (Lance): "are you ok still?" Tenth message (Tyler): "yes, checkin spot again now, will".

Lance showed FBI Special Agent Lange additional messages on his cellphone from a social media app called "Discord". In one of the messages that Lance showed to investigators, the user "tylor/lkum" posted "Hey guys, I have bad news for you all. It was me at UVU yesterday. Im sorry for all of this. Im surrendering through a sheriff friend in a few moments. Thanks for all the good times and laughs, you've all been so amazing. Thank you all for everything".

Through my training and experience, your affiant knows that cell phones contain historical information including text messages, photographs, device location information, social media activity, emails, and videos among other things. Through my training and experience, your affiant knows that those engaged in criminal activity who use electronic devices have the same type of electronic storage data stored on their electronic devices, such as cellphones. I have investigated many cases where cell phone forensic searches have turned up valuable evidence, including location data, images, video, text messages, social media posts, and other evidence. In my experience those involved in criminal activity frequently communicate about their ideals, plans, motives, and even criminal acts and searches of messaging data often reveal this evidence.

I know that cellphones keep a historical record of the device's location, text messages and other communications, images, videos, social media usage and history, websites visited and searches conducted. These materials can be recovered even if deleted through forensic searches. Accordingly, I am requesting authority to seize the cellphone described and conduct a forensic search using forensic tools such as Cellebrite, or other tools used in digital forensics.

This affidavit has been reviewed by David Sturgill of the Utah County DA Office, and it has been approved for presentation to the court.

WHEREFORE, your affiant prays that a Search Warrant be issued for the seizure of said items in the daytime.

APPLICATION TO SEAL SEARCH WARRANT AND RELATED DOCUMENTS:

Your Affiant requests, pursuant to Utah Rule of Crim. P. 40(m) that the search warrant, application, and affidavit or other recorded testimony upon which the warrant is based, to include this application for an order sealing such documents, be SEALED until 03/12/2026 for the following reasons:

- pose a serious impediment to the investigation;

This is an on-going investigation and sealing this search warrant will greatly help to preserve the integrity of the investigation.

I declare under criminal penalty of the State of Utah that the foregoing is true and correct.

Executed on: 12th day of September, 2025 @ 12:41 PM by /s/ JUSTIN BOWEN

IN THE FIFTH DISTRICT COURT - ST GEORGE DEPARTMENT
IN AND FOR WASHINGTON COUNTY, STATE OF UTAH

SEARCH WARRANT

No. 3213621

COUNTY OF WASHINGTON, STATE OF UTAH

To any peace officer in the State of Utah:

Proof by Affidavit made upon oath or written affirmation subscribed under criminal penalty of the State of Utah having been made to me by Investigator JUSTIN BOWEN of State Bureau of Investigation, this day, I am satisfied that there is probable cause to believe

THAT

On the item(s) described as:

An iPhone 14 with serial number: H6YTR96QH4. The phone is in a clear case made by OtterBox with a cracked screen.

In the City of St. George, County of Washington, State of Utah, there is now certain property or evidence described as:

Your affiant is requesting to search and seize the cellphone as identified in this affidavit for electronically stored information, including information related to incoming and outgoing calls, missed calls, and the dates and times recorded for such calls; contact directory information; subject account information as well as account information for third party applications; voice messages; text messages; multimedia messages; digital photographs; video files; any video or audio recordings, downloads, or copies; all GPS mapping and coordinates, including historically archived information; GPS information to include location data from third party applications, including all EXIF and metadata attached to these files; social media posts, search history, social media activity; and any and all other information or data that is deemed to be pertinent to the investigation of a homicide.

and that said property or evidence:

Was unlawfully acquired or is unlawfully possessed;

has been used or is possessed for the purpose of being used to commit or conceal the commission of an offense; or

is evidence of illegal conduct.

Affiant believes the property and evidence described above is evidence of the crime or crimes of 76-5-202 Aggravated murder.

YOU ARE THEREFORE COMMANDED:

to make a search in the daytime of the above-named or described person, vehicle, item, and/or premises for the herein-above described property or evidence and if you find the same or any part thereof, retain such property in your custody subject to the direction of a prosecutor or an order of this Court.

ORDER TO SEAL

Based upon the Application to Seal in the accompanying Affidavit in Support of Search Warrant, IT IS HERBY ORDERED that that the search warrant, application, and affidavit or other recorded testimony upon which this search warrant is based, to include the application for an order sealing such documents, is SEALED until 03/12/2026.

Dated: 12th day of September, 2025 @ 01:07 PM /s/

JAY WINWARD
District Court Judge



RETURN TO SEARCH WARRANT

NO. 3213621

The personal property listed below or set out on the inventory attached hereto was taken from the person of An iPhone 14 with serial number: H6YTR96QH4. The phone is in a clear case made by OtterBox with a cracked screen., by virtue of a search warrant dated the 12th day of September, 2025, and issued by Magistrate JAY WINWARD of the FIFTH DISTRICT COURT - ST GEORGE DEPARTMENT:

An electronic download of the information stored on the identified device.

I, Investigator JUSTIN BOWEN of State Bureau of Investigation, by whom this warrant was executed, do swear that the above listed or below attached inventory contains a true and detailed account of all the property taken by me under the warrant, on the 12th day of September, 2025.

All of the property taken by virtue of said warrant will be retained in my custody subject to the order of this Court or of any other court in which the offense in respect to which the property, or things taken, is triable.

I declare under criminal penalty of the State of Utah that the foregoing is true and correct.

Executed on: 18th day of September, 2025 @ 10:30 AM by /s/ JUSTIN BOWEN